

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 9, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Absent: Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Allen and Mr. Cook, Agenda Items #19 and 20 were removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

CA| Minutes from Regular Meeting of the Governing Body on November 25, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Texas Roadhouse Holdings, LLC d/b/a/ Texas Roadhouse, 1931 Bluegrass Circle, Cheyenne, Wyoming (License currently held by Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, 1931 Bluegrass Circle, Cheyenne, Wyoming). There being no comments and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as Election and Ideological Sign Amendments from 2013 Annual Review. Expressing their concerns with the proposed ordinance were: Boyd Wiggam, Wyoming Liberty Group; Tim Bieligm; Taylor Haynes; Tim Kingston; Jennifer Horvath, American Civil Liberties Association; James Perrott Macneil; Paige Smith and M. Lee Hasenauer, Laramie County Commissioner. Topics of concern included: Censuring free speech; limiting use of private property; first amendment rights; aesthetics vs. the U.S. constitution; opposition to any efforts to restrict or regulate free speech and/or private property rights; placement and size of signs; past court case challenging the City's restriction on signs and time limits for placement; addressing safety concerns large or multiple signs may pose through other means; potential offensiveness of ideological sign contents and personal property, safety and neighborhood effect. Mr. Wiggam, Mr. Kingston and Ms. Horvath spoke in support

of passing the ordinance as approved on second reading. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Mr. Allen moved to amend by substitute ordinance (stamp date 12/6/2013), seconded by Ms. Williams. Mr. Allen noted that Public Service Committee members also supported that the governing body consider other proposals or recommendations that staff or anyone else may bring forward prior to approval of the ordinance on third and final reading. Review of changes in the proposed substitute was provided. Mr. Wiggam spoke in opposition to the proposed amendment, reiterating his support for the ordinance as approved on second reading. Comment followed on the initial intent of ordinance changes to address the number of signs on private property and size of signs involving election and ideological signs, and suggestion of postponement of the item for further review. Motion to amend failed. Voting "no" -- all members of the governing body present. Mr. Allen moved to postpone to December 23, 2013, seconded by Mr. Shanor. Speaking against the motion to postpone were: Mr. Macneil, Mr. Wiggam and Commissioner Hasenauer. Ms. Smith spoke in support of postponement. Discussion followed regarding constitutionality concerns; applicable sign permits; content of ideological sign messages and potential effect on property values and neighborhoods, and comments in support of postponement. Upon inquiry regarding required sign permits, Mayor Kaysen advised there currently is no sign permit/fee required for placement of election and ideological signs. Motion to postpone carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne voting "no". Mayor Kaysen noted that the item will be back before the Public Services Committee at its December 17, 2013 meeting, which begins at 12:00 p.m. in Room 122 , Municipal Building, and at the December 23, 2013 governing body meeting for final reading, which begins at 6:00 p.m., City Council Chambers, and that all meetings are open to the public.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from NR-3 Neighborhood Residential – High Density District to MR-2 Medium Density Residential – Developing for Lots 1-10, Block 1, and Lots 1-10, Block 2, Saddle Ridge, Sixth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail). James Perrot Macneil commented on his family's ancestry, providing a handout relating to same (on file with the City Clerk's office), and expressed his belief the current property owner is not the rightful owner. Mr. Allen moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#4007)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential (County) to NR-2 Neighborhood Residential – Medium Density for a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Shiraz Enclave (located east of and adjacent to Snyder Avenue, north of W. Allison Road). Mr. Allen moved to approve on third and final reading, seconded by Ms. Broyles. Upon inquiry, Brad Emmons, AVI and agent for applicant, provided information on surrounding and adjacent property uses, and identified the difference between town homes and twin homes. Ms. Williams requested

it be noted for the record that information contained in the table titled "Surrounding Land Uses", included in the backup staff report for the item, may not have been presented accurately regarding surrounding land uses. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Ms. Williams voting "no". (#4008)

ORDINANCE - Creating Chapter 5.78, Towing and Wrecker Recovery Operations, Amending Chapter 5.04, Section 5.04.030, Types of Businesses, Activities and Events, and Chapter 5.08, Section 5.08.270, Towing (Vehicular) of Title 5, Business Licenses and Regulations, and Repealing in its entirety Section 10.12.190, Towing Firm Standards, of Chapter 10.12, Administrative and Enforcement, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Chief Brian Kozak, Police Department, referenced remarks he had made and information he previously provided at the last City Council meeting. He noted procedural changes that will be made, if the ordinance is approved, including compilation of an inventory of personal property within vehicles being towed through the Police Department rotation call list requests, and formation of a committee to recommend future changes. He also explained the purpose of including proof of a state salvage yard license in conjunction with application requirements to obtain the City business license. Jodi Shea, attorney with Pence and MacMillan, representing I-80 Towing and its affiliate companies, discussed issues that they would like addressed, such as formation of a committee now and not in the future and the requirement that a state salvage yard license must be obtained, and requested postponement of the ordinance to further work on the issues. Ms. Shea noted the inventory of personal property, as mentioned previously by Chief Kozak, was appropriate and that the "holding" time of vehicles for incidents involving DUI's will include a form provided by the Police Department relative to release of a vehicle. Taylor Haynes spoke against the regulation of towing fees by the City and suggested requiring towing companies to publish their entire list of fees as an alternative. James Perrott Macneil recited a personal towing incident and commented on towing fees, suggesting fees be within a range and not absolutely set. Mike Basom, attorney representing Randy LeBeaumont (Randy's Towing) and Wyoming Professional Tow Association, referenced statements he had made at the previous City Council and Finance Committee meetings and spoke against imposition of the state salvage yard license requirement and regulation of towing fees, commenting on the burden to towing companies regarding same. He urged the ordinance be withdrawn and that the process start over, expressing his belief the consideration process had been flawed as a substantial amount of information relative to the ordinance had been provided by the Assistant City Attorney, who, according to Mr. Basom's records and the State Bar Association, is not a member of the state bar. M. Lee Hasenauer, Laramie County Commissioner, spoke against setting mandated fees for private business and in support of postponement of the ordinance. Thomas Mullan, I-80 Towing, expressed his opinion that past communications with law enforcement on the towing topic had not been effective; stated definitions for essential and non-essential tows should be provided, and commented on complaints that had been received at the local vs. state level. Russ Fleetwood, M & F Towing, related his experience in timely obtaining his state salvage yard license and expressed his understanding of the purpose of the ordinance. Upon request by Mayor Kaysen, Dan White, City Attorney, clarified the Assistant City Attorney's professional status and qualifications, and reviewed Wyoming Rules of Professional Conduct regarding specific rules allowing limited forms of practice by in-house counsel. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Allen. Mr. Brown moved

to amend by substitute ordinance (stamp date 12/02/2013), seconded by Mr. Allen. It was noted that changes in the substitute pertained to adding "Towing vehicle" in Section 5.78.040, B., 4., a., and affiliated clerical corrections. Brief comment followed by Ms. Shea and Mr. Macneil. Mr. Brown raised a point of order that comments remain germane to the motion on the floor with Mayor Kaysen concurring. Motion to amend by substitute carried. Voting "yes" – all members of the governing body present. Ms. Broyles moved to amend by a second substitute ordinance (stamp date 12/5/2013), seconded by Mr. Allen. It was noted the substitute contains the changes approved in the previous substitute and also changes wording in Section 5.78.040, B., 4., g., that addresses concerns that had been raised regarding towing companies availability to accept payments on weekends. Discussion included the following topics: Concern with towing companies' availability to accept weekend payments through business offices being open vs. by telephone; additional charges that may imposed; vehicle owners having weekend communication information to contact a towing company, and addressing complaints that may arise. Upon inquiry, Chief Kozak provided information on how he envisioned retrieval of vehicles would occur on weekends, and the process that would be used to address complaints. Motion to amend by second substitute carried. Voting "yes" – all members of the governing body present with the exception of Dr. Rinne voting "no." Discussion followed on the purpose of requiring proof of a state salvage yard license in conjunction with the City business license; storage of abandoned vehicles vs. tows and vehicle storage conducted pursuant to request through the Police Department's rotation call list; zoning concerns relative to salvage yards within the City; percentage of non-consent tows vs. towing of abandoned vehicles; interpretation of state statute section requiring a salvage yard license, and vehicle owner notifications. Providing information on topics raised were Chief Kozak, Ms. Shea and Mr. Basom. Mr. Shanor moved to amend the previously approved second substitute by striking the following phrase contained in Section 5.78.030, B. 2.: "including a copy of a current and valid vehicle salvage yard storage and disposal facility license as required under Wyo. Stat. Section 31-13-114, evidencing compliance with applicable rules and regulations", and by striking Section 5.78.040 B. 1. in its entirety, seconded by Mr. Luna. Speaking on the proposed amendment were: Dave Rose, Big Al's Towing; Mr. Fleetwood, Mr. Basom and Mr. Mullan. Topics presented included: Process to acquire the state salvage storage yard license; support for the amendment, and purpose of the state license. During discussion, information was provided by Chief Kozak regarding information that must be maintained by those holding the state salvage yard license relative to Federal Theft Act reporting requirements, and Mr. White responded to inquiry regarding wording contained in Wyo. Statute Section 31-13-112 (a), noting the salvage yard license would appear to provide towing/storage companies with an additional layer of liability protection. Motion to amend carried. Voting "yes" – Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Voting "no" – Mr. Allen, Mr. Brown, Ms. Broyles and Mayor Kaysen. Discussion followed on the main motion as amended and included the following topics: Insurance requirements affiliated with the City business license; City RFP (request for proposals) process vs. utilization of a rotation call list for requesting towing services; expectations of services, and potential committee formation to review future changes to the ordinance and fee schedule (affiliated resolution) that may be desired. Main motion as amended (3 times) carried. Voting "yes" – all members of the governing body present. (#4009)

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:25 p.m.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 13, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming to be known as the CST Annexation (located northwest of the intersection of

West College Drive and Southwest Drive). James Perrot Macneil spoke in opposition to the annexation or re-zoning of the land due to ownership concerns. Mr. Allen moved to approve on third and final reading, seconded by Ms. Broyles. Comment was made that Mr. Macneil's statements involved issues outside of the governing body's authority. Motion carried. Voting "yes" -- all members of the governing body present. (#4010)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming to be known as the Koritnik Annexation (located at 3904 Whitney Road approximately 200 feet west of the northwest corner of the intersection of Whitney Road and Countryside Avenue). Mr. Allen moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present. (#4011)

ORDINANCE - Authorizing the issuance by the City of Cheyenne, Wyoming, of a 2013 Refunding Revenue Water Note, in a maximum principal amount of \$8,740,000 and an interest rate of 2.41% and a maturity date of not to exceed December 1, 2025, for the purpose of advance refunding a portion of the refunding Revenue Water Bonds, Series 2007; prescribing the form of said 2013 note; providing for the payment of the 2013 note and the interest thereon; authorizing the execution and delivery by the City of the 2013 note, and the sale of such 2013 note to BOKF, NA d/b/a Colorado State Bank and Trust, a paying agent and registrar agreement, an escrow agreement, closing documents and any other documents necessary in connection therewith; ratifying certain action heretofore taken and providing other details in connection therewith. Mr. Brown moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Amending Note 2 of the City of Cheyenne's Sanitation Fee Schedule established by Ordinance No. 3982. Vicki Nemecek, Public Works Department, explained the ordinance provides for a definition of the word "building" relative to clarification needed to address inequities involving fee assessments for sanitation services. Mr. Brown moved to approve on second reading, seconded by Mr. Luna. Upon inquiry, Jim Elias, Public Works Director, provided information on monthly service fees for apartments, multi-plexes, and assisted living facilities, and those responsible for service payments involving abandoned properties. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to NR-2 Neighborhood Residential – Medium Density for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and Ridge Roads) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential – Established and MUR Mixed Use Residential Emphasis to MUR Mixed Use Residential Emphasis for the N1/2 of Lot 2, and all of Lots 3 & 4, Block 236, Original City (to be known as Keefe Cottages Subdivision), Cheyenne, Wyoming (located at the southeast corner of the intersection of Evans Avenue and E. 22nd Street) -- referred to Public Services Committee

(sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential-Established to MUB Mixed-Use Business Emphasis for Lot 1, and the East 34-feet of Lot 2, Block 382, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of Pebrican Avenue and E. 17th Street) -- referred to Public Services Committee (sponsor -- Mr. Allen).

RESOLUTION - Promulgating maximum approved towing rates for tows within the City of Cheyenne when towing service is requested by the Cheyenne Police Department. Taylor Haynes requested the governing body proceed with caution regarding the setting of fees and suggested companies instead be required to publish their rates. John Allis explained a recent personal incident involving tow truck services relative to rates charged and payment options, and spoke in favor of the resolution. Jody Shea, attorney with Pence and MacMillan, representing I-80 Towing and its affiliate towing companies, advised there is no guarantee that tow companies will receive payment for non-consensual tows and spoke in opposition to set rates as proposed in the resolution, stating the police chief has the option of reviewing rates and enforcing provisions that may allow removal of a towing company from the police department call list. James Perrott Macneil commented in support of reasonable rates, and Thomas Mullan, I-80 Towing stated he would rather work "with" not "for" the City. Russ Fleetwood, M&F Towing, spoke in support of the resolution establishing rates. Mr. Brown moved to adopt, seconded by Ms. Broyles. Discussion topics included: Additional fees that towing companies may assess under extenuating circumstances; reasonable maximum base fees for services; fees to be assessed only applicable to those providing services through the Police Department's rotation call list; voluntary contractual arrangement between the companies on the call list and the City, and rate changes that can be made in the future. Upon inquiry, Chief Brian Kozak, Police Department, clarified the ordinance approved previously during the current meeting will assist with enforcement and the proposed resolution assists with the determination of reasonable maximum fees that can be charged by those towing companies on the police rotation call list. Motion carried. Voting "yes" -- all members of the governing body present. (#5548)

[CA] RESOLUTION - Repealing Resolution No. 2463 and Resolution No. 2616, pertaining to towing services standards and standards for operations, for those towing firms approved to be on the Cheyenne Police Department rotation call list, in their entirety. Mr. Brown moved to adopt, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#5549)

RESOLUTION - Adopting the Fox Farm Corridor Plan. Boyd Wiggam, Wyoming Liberty Group, reiterated concerns he had expressed at the last meeting regarding property owner rights involving any potential property acquisition at the intersection of Fox Farm Rd., Morrie and Avenue C for future improvements. James Perrott Macneil commented on his residence in the area. Mr. Brown raised a point of order that comments remain germane to the subject of the motion on the floor with Mayor Kaysen concurring. Mr. Allen moved to adopt, seconded by Ms. Broyles. Mr. Allen moved to amend by substitute (stamp date 12/4/13), seconded by Mr. Cook. It was advised the proposed substitute adds three conditions as follows: (1) That the intersection

of Fox Farm and Avenue C be further reviewed and analyzed over time so as to determine a final design that improves the overall function of the intersection and corridor for all users, including trucks. The ability to continue to service large trucks in the area is important. The final intersection design should however balance the safety of truck drivers using the corridor, students using the existing Safe Routes to School pathway to Arp Elementary School, and residents of the Fox Farm neighborhood. (2) That the buffered bike lanes proposed on Fox Farm Road be re-analyzed prior to construction so that the safety of bicyclists is considered and adequate separation is provided to other modes from truck traffic on this corridor. (3) The governing body hereby reserves the right to deviate from the Fox Farm Road Corridor Plan. Comments followed in support as well as non-support of the proposed amendment; support for the overall corridor plan and inclusion of conditions to mirror action approved by the County Commissioners, and opposition to a potential roundabout in the future. Motion to amend carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Brown, Dr. Rinne and Mayor Kaysen voting "no". Main motion as amended carried. Voting "yes" -- all members of the governing body present with the exception of Mr. Luna voting "no". (#5550)

[CA] RESOLUTION - Supporting the City of Cheyenne's application for Recreational Trails Program (RTP) funds to enhance the North Cheyenne Community Park Trail System. Motion (per Consent Agenda) carried. (#5551)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Shiraz Enclave, a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of West Allison Road). Mr. Allen moved to adopt, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Ms. Williams voting "no". (#5552)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Sixth Filing, a replat of Lot 14, Block 1, Saddle Ridge, Fifth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail). Motion (per Consent Agenda) carried. (#5553)

[CA] RESOLUTION - Authorizing the City of Cheyenne, Wyoming, to lease, with an option to purchase, sanitation, recycling and landfill equipment. Motion (per Consent Agenda) carried. (#5554)

[CA] RESOLUTION - Supporting the City of Cheyenne's application for a Land and Water Conservation Fund Grant for a neighborhood park in Buffalo Ridge. Motion (per Consent Agenda) carried. (#5555)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Contract between Wyoming Department of Family Services, Social Services Division, Laramie County, and the City of Cheyenne, Office of Youth Alternatives Division, for in-home support and mentoring services to under-served families to strengthen the ability of parents to

provide supportive care for their children. Motion (per Consent Agenda) carried. (#6104)

[CA] Master Agreement for Metropolitan Transportation Planning between the Wyoming Department of Transportation, Federal Highway Administration, and the Cheyenne Metropolitan Planning Organization -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and WINhealth Partners for City Risk Sharing Program July 1, 2013 through June 30, 2014 -- referred to Finance Committee.

[CA] Volleyball Officiating Agreement between the City of Cheyenne, Recreation Division, and Officials for Fun Club for adult City league volleyball officiating services -- referred to Finance Committee.

[CA] 2013- 2014 Collective Labor Agreement between the City of Cheyenne, Wyoming, and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne and FCI Construction of Wyoming LLC, for the pre-construction and construction phase services for the Cheyenne Public Safety Center (1% Specific Purpose Sales & Use Tax)-- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department, and Ayres Associates, for engineering design for the On-Street Bicycle System Implementation Project (1% Specific Purpose Sales & Use Tax, Grant funds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5910 between the City of Cheyenne and WINHealth Partners for a premium rate increase to the City Employee Health Coverage Plan. Motion (per Consent Agenda) carried. (#5910)

[CA] Contract Modification No. 2 to Contract No. 5921 between the City of Cheyenne and Reiman Corporation to reduce retainage for East Pershing Boulevard Reconstruction Project Phase IV (2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration Funding) -- referred to Finance Committee.

[CA] Consideration of Bid #R-10-14 for furnishing one new rotary mower and to trade in a 1999 Jacobsen rough mower for Parks & Recreation Department, Golf Division (Capital Equipment fund). Motion (per Consent Agenda) carried (accept bid from C&M Golf & Grounds, Denver, CO, in an amount not to exceed \$37,697.10, including trade-in).

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Wadsworth Old Chicago, Inc. d/b/a Old Chicago Restaurant, 1734 Meadowland Drive, Cheyenne, Wyoming (License currently held by OC Cheyenne, LLC d/b/a Old Chicago Restaurant, 1734 Meadowland Drive, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for High Plains Entertainment, Inc. d/b/a Redwood Lounge and Package Liquor, 2105 E.

Lincolnway, Cheyenne, Wyoming (License currently held by Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, 2105 East Lincolnway, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

Appointments of Kimberley Withers to the Cheyenne/Laramie County Economic Development Joint Powers Board; Jeffie J. Wiggins-McMullen to the Fire Civil Service Commission; Richard Bryant and Katherine Palmer to the Historic Preservation Board; Lt. Rob Dafoe and Monique Meese to the Laramie County Community Juvenile Services Joint Powers Board; Mary E. Richey and Edwin G. Avery to the Mayor's Council for People with Disabilities; Scott D. Roybal to the Police Civil Service Commission; Terence Roker to the Public Transit Advisory Board; Victoria Fry and Greg Palmquist to the City Planning Commission; John D. Hall and Jody Shields to the Board of Adjustments, and Jared S. Olsen to the Housing and Community Development Advisory Council. Ms. Broyles moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Re-appointments of Ken McCann to the Cheyenne Regional Airport Board; Mark Archer, M.J. Gertsch and Noel R. Griffith Jr. to the Contractor Licensing Board; Ray Fertig, Jr., Nicholas Pickering and Darin Westby to the Building Code Board of Appeals; Gene Palen to the Historic Preservation Board; Gregory Crisp, Howard A. Hill Sr., Mark E. McKay and JoAnne Weigand to the Mayor's Council for People with Disabilities; Sue Mecca and Rita Watson to the Personnel Commission; Marc Woods and Gene MacDonald to the City Planning Commission, and Stephen M. Ganison, April Matthie and Carol Slane to the Housing and Community Development Advisory Council. Ms. Broyles moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the February 26, 2014 Wyoming Association of Municipalities Business Meeting. Motion (per Consent Agenda) carried (Mayor Richard L. Kaysen, Official Voting Delegate; City Clerk Carol Intlekofer, Alternate Delegate).

Under other business:

Buck Holmes, Laramie County Commissioner, commented that County staff will be contacting City staff to review access/egress at the new Boys and Girls Club building area.

There being no other business raised by the public and City Council members, Dan White, City Attorney, requested the governing body meet in executive session for the purpose of briefing the governing body on a pending lawsuit brought against the City by Wyoming Tribune-Eagle regarding the Public Meetings Act. Mr. Shanor moved to meet in executive session, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Executive session

convened at 9:22 p.m.)

The meeting was officially adjourned at 9:46 p.m. following conclusion of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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